



Notification Waiver Determination

Shepparton Automotive Group - Darryl Twitt Motors dealerships in Shepparton East, Victoria

Acquisition	Jasnic Automotive Pty Ltd, trading as Shepparton Automotive Group, applied for a notification waiver in respect of its proposed acquisition of the business assets of Goulburn Motor Group (Vic) Pty Ltd, trading as Darryl Twitt Motors, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	8 September 2026

Parties to the Acquisition	The acquirer, Shepparton Automotive Group, operates a single automotive dealership located at 80 Benalla Road, Shepparton (VIC). It supplies new vehicles as the authorised representative for Hyundai, Mitsubishi, and Suzuki, and associated vehicle servicing. Shepparton Automotive Group also supplies used vehicles and vehicle financing, as well as genuine parts to consumers as part of any scheduled services performed by the dealership. The target, Darryl Twitt Motors, operates two dealerships located at 325-329 Midland Highway, Shepparton East (VIC) and 2-8 Carroll Road, Shepparton East (VIC). It supplies new vehicles as the authorised representative for Ford, Volkswagen, Audi, BYD, Geely, Land Rover, and LDV, and associated vehicle servicing. Darryl Twitt Motors also supplies used vehicles, spare parts, and vehicle financing, as well as servicing for Skoda vehicles. Darryl Twitt Motors' Land Rover and LDV sales, service, and parts businesses are not included in the Acquisition.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information provided in the application, including the parties' (including their connected entities) revenues in Australia, the ACCC considers it is likely that, if the Acquisition were put into effect, the notification thresholds would be met. Based on the information provided in the application, the ACCC considers that the Acquisition may raise competition issues given: there is horizontal overlap between Shepparton Automotive Group and Darryl Twitt Motors in the supply of new and used cars in the Shepparton region of VIC, and the extent of inter-brand competition between the parties is unclear

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	b. the parties' combined share of supply of new cars in the Shepparton region may be significant c. the extent to which the merged entity would be likely to face intra- and inter-brand competition from alternative dealerships in the Shepparton region and the surrounding areas is uncertain. The ACCC considers that the Acquisition warrants consideration through the notification process, including via consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act